



Managing Allegations about Staff and Volunteers

Part of the BYO Safeguarding and Protection Policy Suite

Britannia Youth Organisation CIC is a Community Interest Company registered in England and Wales.
Company No. 12515346 | Registered Address: 36 St Joseph's Rd, Ward End, Birmingham, B8 2JU

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Document Details	Information
Policy Title	Managing Allegations about Staff and Volunteers
Version	2.0
Effective Date	27 June 2026
Review Date	1 July 2027
Owner	Designated Safeguarding Lead
Approved By	Hassan Kingsley
Cross-References	Safeguarding Policy Framework, Child Protection Procedures, Adult Safeguarding Procedures, Code of Conduct Policy, Whistleblowing Policy, Complaints Policy, Recruitment, Selection and Onboarding Policy, Anti-Bribery and Corruption Policy

Introduction

This guidance is part of Britannia Youth Organisation's (BYO) Safeguarding Framework as part of our commitment to keeping children, young people and adults at risk safe from abuse. It should be read in conjunction with:

- **Safeguarding Policy Framework**
- **Child Protection Procedures**
- **Adult Safeguarding Procedures**
- **Code of Conduct Policy**
- **Disciplinary Policy** (when developed)
- **Whistleblowing Policy**
- **Complaints Policy**
- **Recruitment, Selection and Onboarding Policy**

Framework Integration: This policy is a crucial component of our comprehensive safeguarding framework and complements procedures for managing allegations between young people outlined in our **Managing Allegations of Peer-to-Peer Abuse** policy.

1. Purpose & Scope

These procedures set out how to manage allegations (including safeguarding concerns) about BYO staff or volunteers and apply where allegations arise in relation to the staff or volunteer member:

- Carrying out duties for BYO; and
- Their conduct or behaviour outside of work or volunteering with BYO that may impact their suitability to work with children, young people or adults at risk

BYO will take into account information received from internal and external sources.

Who This Applies To

This policy covers allegations against:

- **Staff:** All employees (full-time, part-time, temporary, contract)
- **Volunteers:** All individuals giving unpaid time to BYO
- **Directors:** Board members and trustees
- **Contractors:** Third-party individuals providing services
- **Partners:** Representatives of partner organisations working with BYO

Recruitment Standards: All individuals covered by this policy undergo appropriate vetting as detailed in our **Recruitment, Selection and Onboarding Policy** and **Vetting and DBS Policy**.

2. What is an Allegation

An allegation concerns a staff or volunteer's behaviour, specifically that they have intentionally or unintentionally abused, exploited or put at risk, a child or 'adult at risk'.

Criteria for Allegations

If you are concerned that a member of staff or volunteer who works or volunteers for BYO has:

1. Behaved in a way that has harmed or may harm a child, young person or adult at risk of abuse
2. Possibly committed a criminal offence against or related to a child, young person or adult at risk of abuse
3. Behaved in a way that indicates he/she is unsuitable to work with children, young people or adults at risk of abuse
4. Behaved towards a child or children in a way that indicates they may pose a risk of harm to children

Types of Allegations

Allegations may include:

- **Physical abuse** - causing physical harm or injury
- **Sexual abuse** - inappropriate sexual conduct or exploitation
- **Emotional abuse** - psychological harm or inappropriate relationships
- **Neglect** - failure to provide appropriate care or supervision
- **Financial abuse** - misuse of position for financial gain
- **Grooming** - inappropriate relationship building or boundary crossing
- **Professional misconduct** - breach of professional standards or codes
- **Criminal activity** - any criminal behaviour, whether related to work or not

Code of Conduct: Expected standards of behaviour are outlined in our Code of Conduct Policy.

3. Reporting Contact Details

Primary Contacts

Designated Safeguarding Lead (DSL): Hassan Alexander Kingsley

- Mobile: 07597 874 222
- Email: hassankingsley@britanniayo.com

Deputy Designated Safeguarding Lead (DDSL): To be appointed

Alternative Reporting Routes

If the allegation concerns the DSL or DDSL:

- Contact the Chair of the Board of Directors directly
- Use external reporting channels (LADO, police, local authority)
- Follow **Whistleblowing Policy** procedures for protected disclosure

For anonymous or difficult reports:

- **Whistleblowing Policy** provides alternative reporting channels
- **NSPCC Whistleblowing Helpline:** 0800 028 0285
- **Local Authority Designated Officer (LADO):** 0121 675 1669

Alternative Reporting: If you feel unable to report through normal channels, see our **Whistleblowing Policy** for alternative options including anonymous reporting.

4. Initial Response and Documentation

Urgent Action Required

It is very important that you take action about your concerns without delay so as to prevent problems escalating and reduce the risk of harm. BYO's paramount concern is to safeguard children, young people and adults at risk.

Immediate Documentation Requirements

All allegations against staff or volunteers must be documented using the BYO Safeguarding Case Report Form immediately upon receipt. This ensures:

- **Comprehensive evidence gathering** from the outset
- **Legal admissibility** of documentation in formal proceedings
- **Consistency** in allegation management and investigation
- **Professional standard** of record-keeping for LADO and external agencies

When to Complete Safeguarding Case Report Form for Staff Allegations

The form must be completed for all allegations involving staff or volunteers who have:

1. **Behaved in a way that has harmed** or may harm a child, young person or adult at risk
2. **Possibly committed a criminal offence** against or related to a child, young person or adult at risk
3. **Behaved in a way that indicates** they are unsuitable to work with children, young people or adults at risk
4. **Behaved towards a child or children** in a way that indicates they may pose a risk of harm

Additional circumstances requiring the form:

- **Professional misconduct** involving safeguarding implications
- **Breach of safeguarding policies** or Code of Conduct with potential harm
- **Inappropriate relationships** with service users
- **Criminal activity** whether or not directly related to work
- **Concerning behaviour** outside of work that affects suitability

5. First Steps - Documentation Protocol

1. **Ensure immediate safety** - if someone is at immediate risk, call 999
2. **Complete Safeguarding Case Report Form** immediately (within 2 hours of allegation)
3. **Report to DSL/DDSL** with completed form within same time-frame
4. **Do not investigate** - avoid questioning the person making the allegation or the person alleged against
5. **Preserve evidence** - secure all relevant documentation, devices, communications
6. **Maintain confidentiality** - only share information with those who need to know

Specific Information Required for Staff Allegations

The Safeguarding Case Report Form must include:

Allegation Details

- **Specific nature** of the allegation with exact details
- **Date, time, location** of alleged incident(s)
- **Witnesses present** or potential witnesses
- **Evidence available** including documents, communications, CCTV
- **Impact on alleged victim(s)** - immediate and ongoing concerns

Staff Member Information

- **Full name and role** of person subject to allegation
- **Length of service** and previous positions
- **DBS check status** and any previous concerns
- **Training record** including safeguarding and professional development
- **Previous allegations** or disciplinary issues (if any)
- **Current duties** and access to children/vulnerable adults

Reporting Person Details

- **Name and role** of person making the allegation
- **Relationship to alleged victim** (if applicable)
- **How the allegation** came to their attention
- **Any concerns about** their motivation or credibility
- **Support needs** for the reporting person

Immediate Risk Assessment

- **Ongoing risk** to children or adults at risk
- **Access to potential victims** in current role
- **Suitability for continued** employment or volunteering
- **Need for suspension** or alternative duties
- **External agency involvement** required

If the Allegation Involves Criminal Activity

- **Call 999** if there is immediate danger
- **Call 101** for non-emergency police matters
- **Do not investigate** or gather evidence yourself
- **Follow police guidance** on preserving evidence
- **Inform LADO immediately** on 0121 675 1669

6. Investigation Process Documentation

Safeguarding Case Report Form in Investigations

The completed form serves as the foundation for all investigation activities:

LADO Reporting

- **Form submitted** to LADO within 1 working day alongside initial report
- **Provides comprehensive background** for LADO decision-making
- **Updated with LADO** recommendations and guidance
- **Used to track LADO** involvement and advice throughout process

Police Investigation Coordination

- **Shared with police** where criminal investigation required
- **Provides baseline** evidence for criminal proceedings
- **Updated with** police investigation progress and outcomes
- **Maintained separately** from internal investigation documentation

Internal Investigation Management

- **Forms basis** for internal investigation terms of reference
- **Updated with** investigation findings and evidence
- **Records all** witness statements and documentary evidence
- **Documents** investigation conclusions and recommendations

Ongoing Case Management Using the Form

The DSL will maintain the Safeguarding Case Report Form as a live document:

- **Regular updates** with new information or developments
- **Case conference notes** and multi-agency meeting outcomes
- **Risk assessment reviews** and any changes in circumstances
- **Support provided** to all parties involved
- **External agency communications** and responses
- **Timeline tracking** of all significant events and decisions

7. What Will Happen on Receipt of Allegation

Initial Response (Within 1 Working Day)

The DSL/DDSL will:

- **Acknowledge receipt** and review the information within one working day
- **Treat with confidentiality** throughout the process
- **Log in secure safeguarding records** with details of actions taken
- **Determine level of risk** and any immediate action required
- **Contact LADO** within 1 working day for guidance

Initial Risk Assessment

The DSL/DDSL will consider:

- **Ongoing risk** to children or adults at risk
- **Whether to report to police** for potential criminal activity
- **Securing evidence** for investigation (devices, laptops, computers, logs)
- **Welfare and well-being** of those making the allegation
- **Welfare and well-being** of the person against whom the allegation has been made
- **Requirements to report** allegations (funders, LADO, regulatory bodies)
- **Communications** with service users and other stakeholders

Immediate Safeguarding Actions

May include:

- **Suspension** from duties pending investigation
- **Alternative duties** away from direct contact with service users
- **Supervised contact** only with children/adults at risk
- **No contact** with BYO premises or activities
- **Reporting to external agencies** (police, LADO, regulatory bodies)

8. Decision-Making Process

Safeguarding Review Panel

If it is not clear whether the allegation meets the criteria for these procedures, advice and guidance will be sought through BYO's **Safeguarding Review Panel** consisting of:

- The DSL (or DDSL if DSL is subject of allegation)
- Chair of Board of Directors
- One independent Board member
- External safeguarding advisor (when appropriate)

LADO Consultation

All allegations must be reported to the Local Authority Designated Officer (LADO) within 1 working day.

LADO Contact Details:

- **Phone:** 0121 675 1669
- **Email:** lado.secure@birmingham.gcsx.gov.uk

The LADO will:

- Provide advice and guidance on next steps
- Coordinate with police if criminal investigation required
- Monitor progress of the investigation
- Advise on employment decisions

Board Oversight

The Board of Directors will:

- **Nominate oversight person(s)** for day-to-day management
- **Ensure appropriate support** is provided to all parties
- **Make employment decisions** based on investigation findings
- **Review policies and procedures** based on lessons learned

9. Investigation Process

Types of Investigation

Police Investigation:

- For potential criminal offences
- Led by police with LADO oversight
- BYO internal investigation may be delayed pending criminal investigation

Internal Investigation:

- For professional conduct and suitability matters
- Led by independent, appropriately trained investigator
- Follows fair and transparent process
- Results in recommendations for action

Independent Investigation

An internal investigation must be undertaken by:

- **Independent investigator** - not involved in day-to-day operations
- **Appropriately trained** - understands safeguarding and employment law
- **Competent professional** - with relevant experience and qualifications

The investigator will:

- **Gather facts** objectively and thoroughly
- **Interview relevant parties** appropriately
- **Review evidence** including documents and communications
- **Make recommendations** for action based on findings

Parallel Processes

These procedures may run concurrently with:

- **Disciplinary procedures** following internal investigation
- **Complaints procedures** if service users have made complaints
- **Whistleblowing procedures** if concerns about organisational culture
- **Criminal proceedings** if police investigation results in charges

Safeguarding Priority: In all cases, safeguarding must be paramount and the safety of children and adults at risk the first consideration.

10. Supporting All Parties - Documentation Requirements

Comprehensive Support Documentation

All support provided to parties must be recorded in the Safeguarding Case Report Form:

Support for Alleged Victims

- **Immediate safety measures** implemented and reviewed
- **Professional support** arranged (counselling, advocacy, medical)
- **Educational/workplace** adjustments made
- **Family liaison** and communication arrangements
- **Long-term support planning** and review arrangements

Support for Person Making Allegation

- **Protection measures** against potential retaliation
- **Professional support** including counselling if traumatised
- **Workplace adjustments** or flexible arrangements
- **Regular check-ins** and welfare monitoring
- **Whistleblowing protection** measures implemented

Support for Person Subject to Allegation

- **Fair treatment measures** and due process protections
- **Professional support** including legal advice access
- **Workplace arrangements** during investigation (suspension, alternative duties)
- **Communication plan** for investigation progress updates
- **Welfare monitoring** and mental health support

Support for Wider Team

- **Team briefings** and reassurance (maintaining confidentiality)
- **Additional supervision** for staff affected by allegations
- **Professional support** for managers handling difficult situations
- **Service continuity** planning to minimise disruption

11. Special Considerations

Digital Evidence and Indecent Images

Important: BYO will not copy, print, share, store or save indecent images of children as this is illegal.

When allegations involve indecent images:

- **Do not view** or handle suspected illegal images
- **Secure devices** immediately and do not attempt to access content
- **Contact police immediately** for guidance on evidence handling
- **Protect staff** from traumatic exposure to illegal content
- **Follow police guidance** throughout the process

Historical Allegations

For allegations about past events:

- **Take seriously** regardless of when the alleged abuse occurred
- **Consider current risk** posed by the individual
- **Contact LADO** even for historical allegations
- **Support alleged victims** who may have carried trauma for years
- **Investigate thoroughly** as patterns of behaviour may exist

Multiple Allegations

When multiple allegations arise:

- **Consider patterns** of concerning behaviour
- **Coordinate investigations** to avoid duplication or conflict
- **Enhanced safeguarding measures** may be required
- **LADO involvement** becomes even more critical
- **Media interest** may need to be managed

12. Outcomes and Actions

Possible Investigation Outcomes

Substantiated: Evidence supports the allegation

False: Evidence disproves the allegation

Malicious: Allegation is deliberately invented or knowingly false

Unsubstantiated: Insufficient evidence either way

Unfounded: No evidence or concern about the person's behaviour

Employment Actions

Based on investigation findings:

- **No action required** - person continues in role
- **Additional training** - addressing identified development needs
- **Disciplinary action** - warnings, conditions, or restrictions
- **Dismissal** - for gross misconduct or unsuitability
- **Referral to DBS** - for barring consideration
- **Professional body referral** - for professional misconduct

Regulatory Reporting

DBS Referral: Required when person is dismissed or would have been dismissed for harm or risk to children/adults at risk

Professional Bodies: Relevant professional registration bodies must be informed of serious misconduct

Regulatory Bodies: Charity Commission or other regulators may need to be informed

13. Communication and Media

Internal Communication

- **Staff and volunteers** - appropriate briefing about safety measures
- **Service users** - reassurance about ongoing safety and support
- **Board members** - regular updates on progress
- **Partner organisations** - information sharing as appropriate

External Communication

- **Funders** - notification as required by funding agreements
- **Media enquiries** - handled by designated spokesperson only
- **Community concerns** - addressed through appropriate channels
- **Legal advisers** - consultation on complex cases

Confidentiality

- **Need to know basis** - information shared only with those requiring it
- **Data protection** - compliance with Data Protection Policy
- **Legal constraints** - police investigations may limit information sharing
- **Reputation management** - balanced with transparency obligations

14. Records and Information Management

Safeguarding Case Report Form as Master Record

The completed Safeguarding Case Report Form serves as the master record for all allegation cases and must contain:

Comprehensive Case History

- **Initial allegation details** and all subsequent developments
- **Investigation timeline** with key dates and milestones
- **All agency involvement** including LADO, police, regulatory bodies
- **Decision-making processes** and rationale for key decisions
- **Outcome documentation** including disciplinary actions or exoneration

Evidence Management

- **Inventory of all evidence** collected during investigation
- **Witness statement summaries** and interview notes
- **Documentary evidence** references and secure storage locations
- **Digital evidence** handling and forensic preservation records
- **Chain of custody** documentation for all physical evidence

Multi-Agency Coordination

- **LADO communications** and advice received
- **Police liaison** and investigation coordination
- **Regulatory body** notifications and responses
- **Professional body** referrals and outcomes
- **DBS referral** decisions and processing

Storage and Access Control

The Safeguarding Case Report Form and associated documentation:

- **Stored in secure** safeguarding filing system with restricted access
- **Electronic copies** maintained on password-protected systems only
- **Access limited** to DSL, DDSL, investigating officers, and authorised personnel
- **Audit trail maintained** of all access and file modifications
- **Retention schedule** applied in accordance with legal requirements and Data Protection Policy

Information Sharing Protocols

Form information may be shared with:

- **LADO** for case management and oversight
- **Police** for criminal investigation purposes
- **DBS** for barring and suitability decisions
- **Professional regulatory bodies** for fitness to practice assessments
- **Employment tribunals** or legal proceedings as required
- **Insurance companies** for liability and coverage decisions

All sharing must be:

- **Documented** in the case report form with dates, recipients, and purposes
- **Proportionate** to the legitimate need for information
- **Consistent** with data protection requirements and confidentiality obligations
- **Authorised** by appropriate senior personnel

15. Training Requirements for Staff Allegation Documentation

Specialised Training for Allegation Management

All managers and DSL personnel must receive training on:

Form Completion for Staff Allegations

- **Legal requirements** for documentation in employment and criminal proceedings
- **Evidence standards** and admissibility in formal investigations
- **Confidentiality obligations** and information sharing protocols
- **LADO reporting** requirements and coordination procedures

Investigation Management

- **Maintaining objectivity** and avoiding bias in documentation
- **Evidence preservation** and chain of custody requirements
- **Witness interview** techniques and statement recording
- **Multi-agency coordination** and information sharing protocols

Legal and Professional Considerations

- **Employment law** implications of allegation documentation
- **Criminal procedure** requirements for evidence handling
- **Professional regulation** and fitness to practice referrals
- **Data protection** and human rights considerations

Case Management Skills

- **Risk assessment** and ongoing safety planning
- **Support coordination** for all parties involved
- **Communication management** with stakeholders and agencies
- **Quality assurance** and case review procedures

Annual refresher training will include case study analysis using completed Safeguarding Case Report Forms to demonstrate best practice in allegation documentation and management.

16. Learning and Improvement

Post-Incident Review

Once matters are concluded, BYO will:

- **Review what happened** and identify lessons learned
- **Update policies** and procedures as appropriate
- **Enhance training** programmes based on findings
- **Improve practices** to prevent future incidents
- **Share learning** with relevant stakeholders

Organisational Development

Learning may result in:

- **Policy updates** across the safeguarding framework
- **Enhanced training** for staff and volunteers
- **Improved recruitment** and vetting procedures
- **Better supervision** and support systems
- **Cultural changes** to promote safeguarding

Related Policies

This policy should be read alongside:

- **Safeguarding Policy Framework**
- **Child Protection Procedures**
- **Adult Safeguarding Procedures**
- **Managing Allegations of Peer-to-Peer Abuse**
- **Code of Conduct Policy**
- **Whistleblowing Policy**
- **Complaints Policy**
- **Recruitment, Selection and Onboarding Policy**
- **Vetting and DBS Policy**
- **Data Protection Policy**
- **Anti-Bribery and Corruption Policy**

17. Key External Contacts

Statutory Agencies

Local Authority Designated Officer (LADO): 0121 675 1669 **Police Emergency:** 999 **Police Non-Emergency:** 101 **Birmingham Children's Services:** 0121 303 1888 **Birmingham Adult Social Care:** 0121 303 1234

Support Organisations

NSPCC Whistleblowing Helpline: 0800 028 0285 **Disclosure and Barring Service:** 03000 200 190
ACAS Employment Relations: 0300 123 1100

Document Control

- This policy forms part of BYO's comprehensive safeguarding framework
- All staff receive training on recognising and reporting concerns about colleagues
- Regular reviews ensure procedures remain effective and compliant

This framework should be read as the foundation document alongside all other BYO safeguarding policies and procedures. For any queries about this framework, please contact the Designated Safeguarding Lead.

This policy has been approved by Hassan Kingsley, the Governor, and will be reviewed annually or following any significant incident or change in legislation.

Reviewed by:



Hassan Kingsley
Governor

Date: 28/06/2026

Next Review Date: 01/07/2027

This policy forms part of BYO's commitment to safeguarding and should be read alongside our complete Safeguarding Framework.

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